

24NWCV00488 24NWCV00488

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-01

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Case Number: 24NWCV00488 Hearing Date: July 1, 2026 Dept: L

Defendant Kimnori USA, Inc.'s

Ex Parte Application to Quash Levy(s) of May 4, 2026 and/or June 4, 2026 and for Stay of Proceedings Pursuant to C.C.P. § 916/917.1 or § 918 is DENIED.

Defendant to give notice.

Background

This is an action for breach of contract. On February 16, 2024, Plaintiff Elected Personnel, LLC ("Plaintiff") filed this action against Defendant Kimnori USA, Inc. ("Defendant") and Does 1 to 10.

On January 23, 2026, a bench trial was held. The trial started at 10:30 a.m. until 12:00 p.m. and from 1:30 pm to 2:00p.m., for a total of two hours. Both sides presented evidence. At the conclusion of argument, the Court awarded judgment in favor of Plaintiff in the amount of \$103,116.00 stating the court's rationale orally in open court. The request for a written statement of decision was denied. (1/23/26 Minute Order.) Although damages was supposed to be \$103,116.00, the Minute Order incorrectly reflected that judgment was in favor of Plaintiff in the amount of \$130,116.00.

On January 29, 2026, Plaintiff filed a Motion for Prejudgment Interest. On March 9, 2026, Plaintiff filed a Motion for Attorney's Fees.

On February 18, 2026, Plaintiff filed a Motion for Order to Correct the Judgment Nunc Pro Tunc. On March 13,

2026, the Court signed the Stipulation and Order to Correct Judgment Nunc Pro Tunc, correcting the judgment amount to \$103,116.00.

On April 27, 2026, Defendant filed a Notice of Appeal of Judgment. On May 1, 2026, the Court filed Notice of Appeal.

On May 12, 2026 and June 17, 2026, Defendant filed ex parte applications requesting a stay of enforcement of judgment, stating that a bond had been posted. There was a dispute as to whether the bond had been posted.

On June 18, 2026, the Court was made aware that Defendant had improperly attempted to post the bond electronically and denied Defendant's renewed request for a stay. On the same day, the Court signed an amended Judgment to include damages, prejudgment interest, attorney's fees, and costs in the total amount of in the amount of \$287,573.58.

On June 22, 2026, Defendant posted an undertaking in the amount of \$155,000.00.

Defendant now moves ex parte for an order 1) quashing Plaintiff's June 4, 2026 (Orange County) levy, and 2) if funds have yet to be turned over, quashing Plaintiff's May 4, 2026 (Los Angeles County) levy on for the same amounts. Defendant also requests a stay pursuant to Code of Civil Procedure sections 916/917.1 or section 918.

Discussion

An undertaking is required to stay enforcement of money judgment. (Code Civ. Proc., § 917.1, subd. (a)(1).) "The undertaking shall be for double the amount of the judgment or order unless given by an admitted surety insurer in which event it shall be for one and one-half times the amount of the judgment or order." (Code Civ. Proc., § 917.1, subd. (b).) "Costs awarded by the trial court under Chapter 6 (commencing with Section 1021) of Title 14 shall be included in the amount of the judgment or order for the purpose of applying paragraph (1) of subdivision (a) and subdivision (b)." (Code Civ. Proc., § 917.1, subd. (d).)

Further, Civil Code section 1717 states that, in any action on contract that awards attorney's fees to prevailing party, "[r]easonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit." (Civ. Code, § 1717, subd. (a); see also Code Civ. Proc., §§ 1032, 1033.5.)

Prejudgment interest is included in damages. (See Civ. Code, § 3287, subd. (a) [providing for prejudgment interest for damages that are "certain, or capable of being made certain by calculation"].)

Defense counsel argues that the Court should recognize April 29, 2026 as the date the bond was posted. However, per California Rules of Court, Rule 2.300(b), "no will, codicil, bond, or undertaking may be filed by fax nor may a court issue by fax any document intended to carry the original seal of the court." The Court reads such provision to mean that undertakings must be filed in person.

The Court finds that the undertaking should be based on the June 18, 2026 Judgment amount of \$287,573.58. One and one-half times the amount of such judgment is \$431,360.37.

Because Defendant's posted \$155,000.00 undertaking is well below the required amount for the undertaking, Defendant's ex parte application to quash Plaintiff's levies and to stay enforcement of judgment pending appeal is denied.